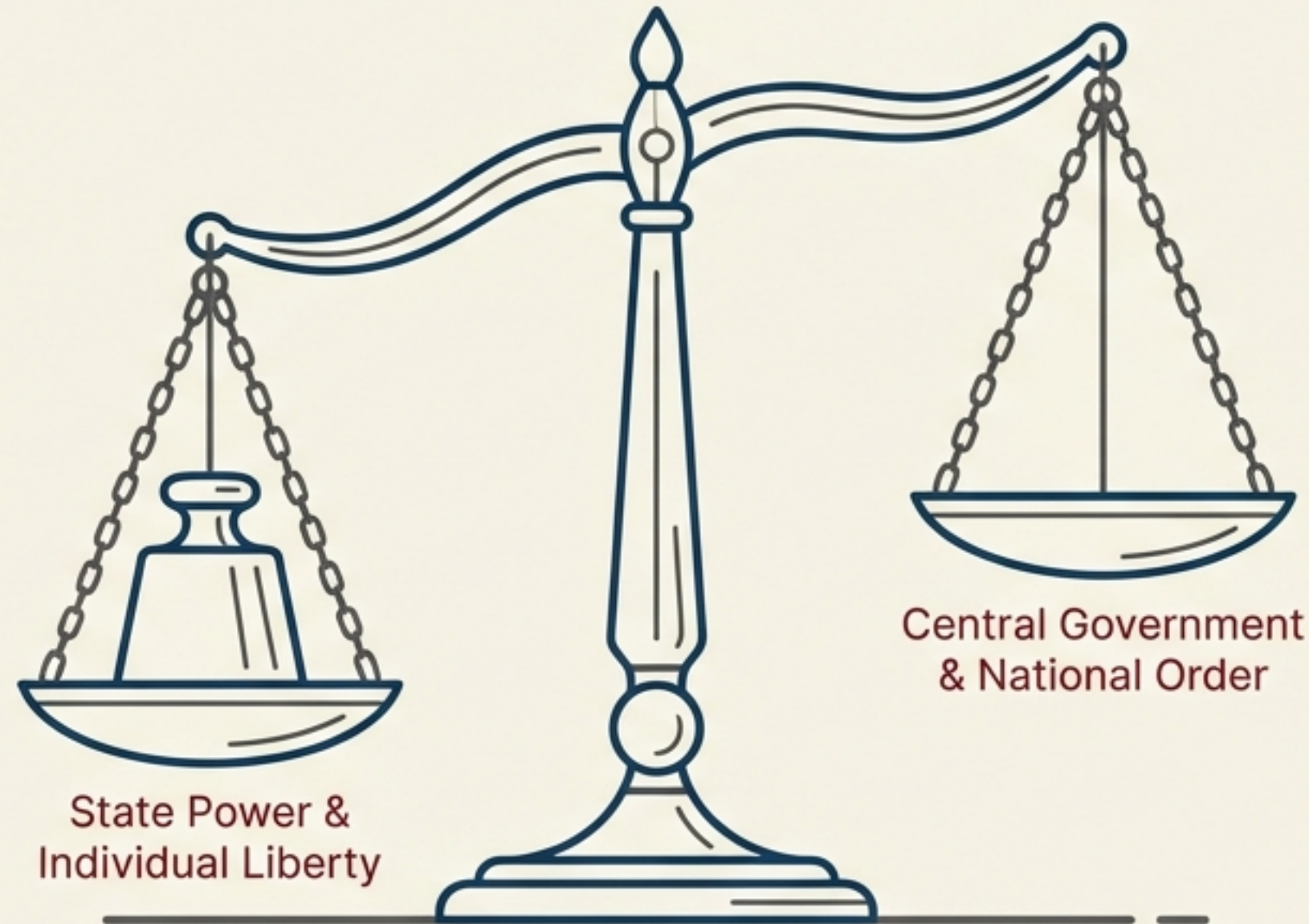
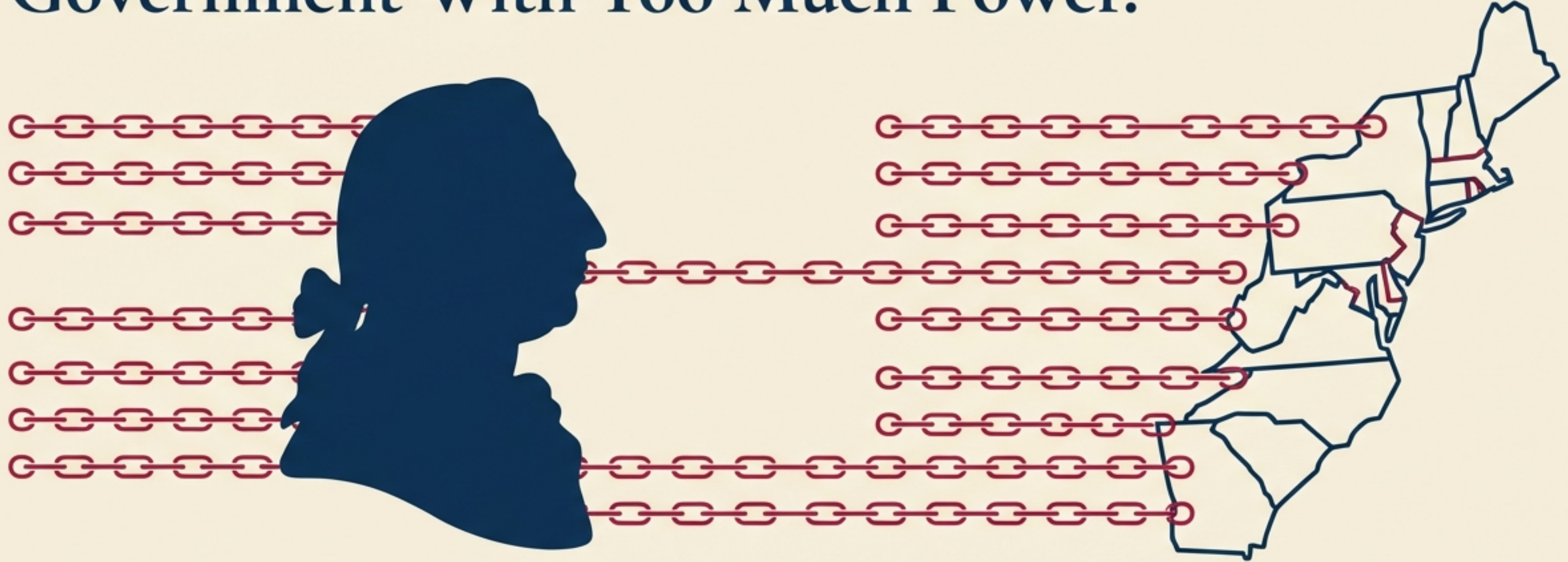


The Overcorrection: How America's First Constitution Was Designed to Fail

The story of the Articles of Confederation, a government born from a fear of power.



The Revolution Was a Reaction Against a Government With Too Much Power.



The experience under British rule defined a generation of American leaders. They saw a powerful, centralized government as the ultimate threat to freedom. Their primary goal was to create a system that could never replicate the "tyranny" of King George III. This fear became the guiding principle for their first attempt at a national government.

The States First Built Walls to Protect Their Liberty.

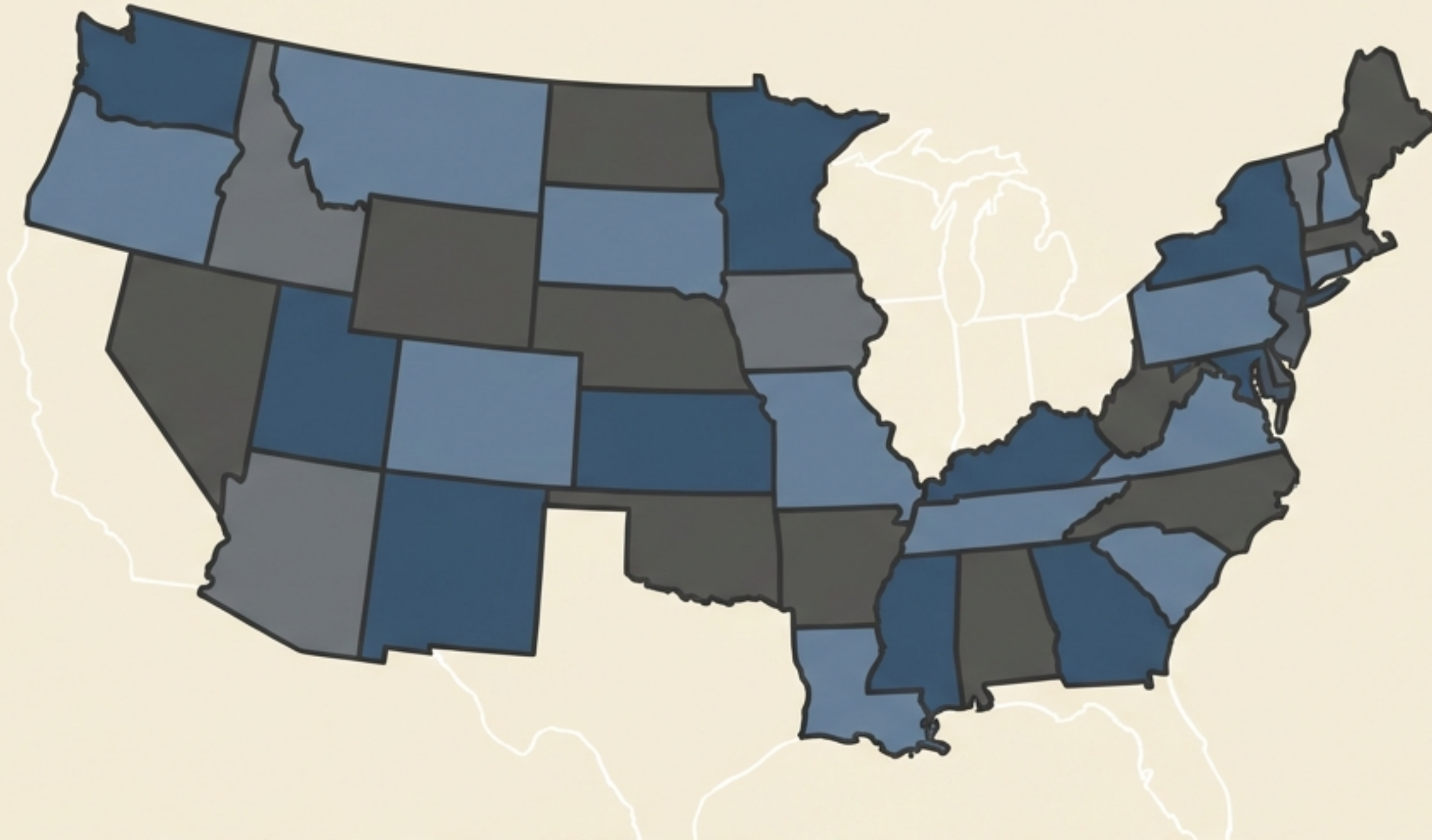
“... the right of enjoying and defending their lives and liberties; that of acquiring, possessing, and protecting property; in [short], that of seeking and obtaining their safety and happiness.”

—Massachusetts Constitution of 1780

Before creating a national government, each state wrote its own constitution. These documents had two primary goals: clearly spell out the rights of citizens and strictly limit the power of government. They created legislatures elected by the people and divided power to prevent its concentration.

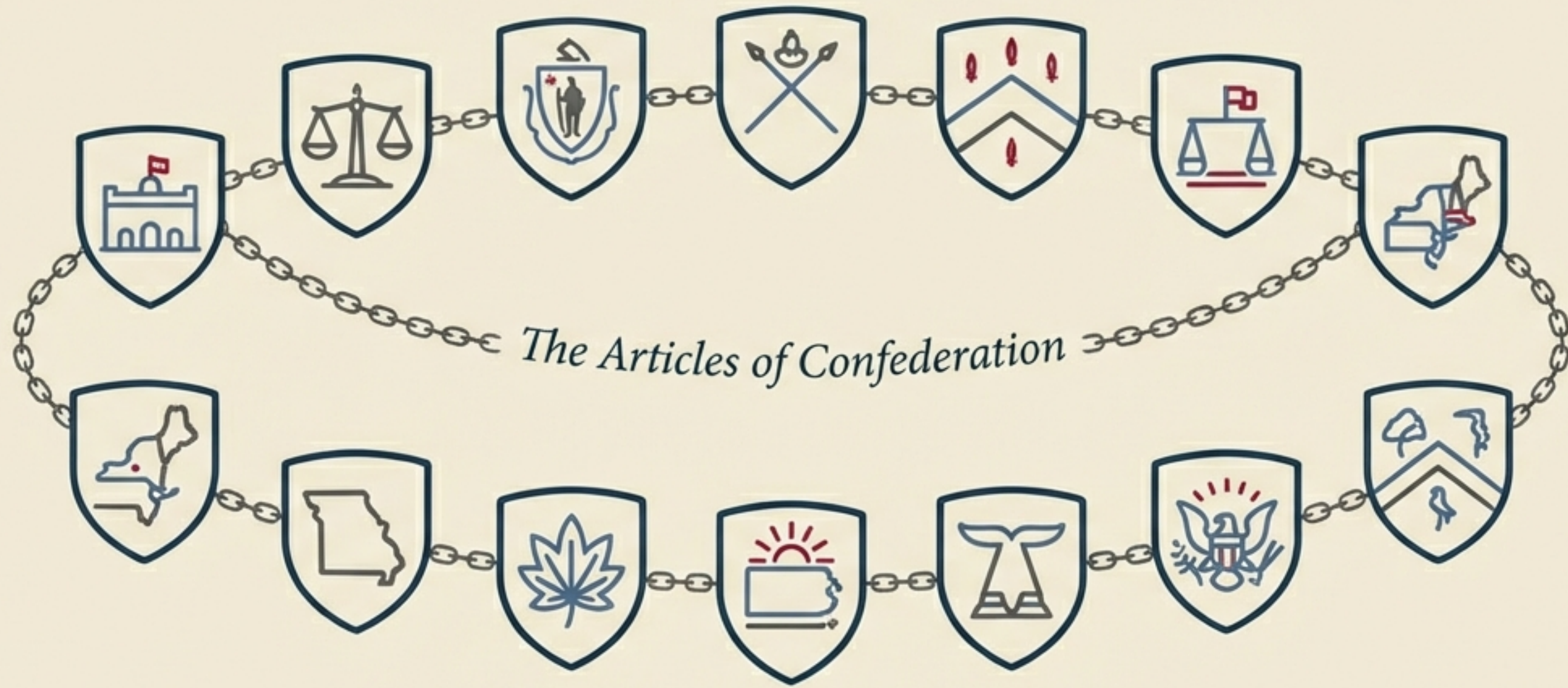
- Virginia's constitution was the first to include a “bill of rights,” a list of freedoms the government promised to protect, including trial by jury and freedom of religion.

Americans Saw Themselves as Citizens of States, Not a Single Nation.



The Continental Congress faced a difficult task. While unity was needed to win the war, most people felt loyal to their own state, not to a new American nation. States were deeply reluctant to give up any of their newfound power to a central authority, fearing they would simply be trading one distant, powerful government for another.

The Articles of Confederation Created a 'Loose Alliance,' Not a Nation.



Approved in 1777, the first American constitution created a weak central government that served as a loose alliance of 13 independent states. It was a compromise born of necessity, designed to coordinate the war effort while leaving the states with the majority of the power. It essentially formalized the existing ad-hoc structure of the Continental Congress.

The New System Left States with Most of the Power

STATE GOVERNMENTS



Enforce Laws



Power to Tax



Regulate Trade



Control Western Lands (initially)

CONGRESS



Declare War



Sign Treaties



Coin Money



Operate Post Offices

The Articles left states free to make decisions for themselves, which was seen as its primary strength. However, this design left the central government with very few tools to manage the nation as a whole.

The Government Was Designed With Four Crippling Weaknesses

The fear of centralized authority resulted in a government that lacked the fundamental powers necessary to function effectively.



1. No Power to Tax

Congress could only *request* money from states, which they were **not** required to provide. It could not raise its own revenue.



2. No Power to Regulate Trade

It could not manage commerce between states or with foreign nations, leading to economic conflict and confusion.



3. No Executive Branch

There was no president to carry out or enforce the laws passed by Congress. Enforcement was left to the states.



4. No National Judiciary

There was no system of federal courts to settle disputes between states.

State Self-Interest Nearly Prevented the Union from Forming



Before the Articles could even be ratified, a major dispute erupted.

Maryland, a small state with no western land claims, refused to approve the constitution. It feared that large “landed” states like Virginia would become overwhelmingly powerful.

The government was paralyzed for years.

Resolution: The standoff ended only when Thomas Jefferson persuaded Virginia to cede its western lands to Congress for the good of the union. Maryland finally ratified the Articles in 1781.

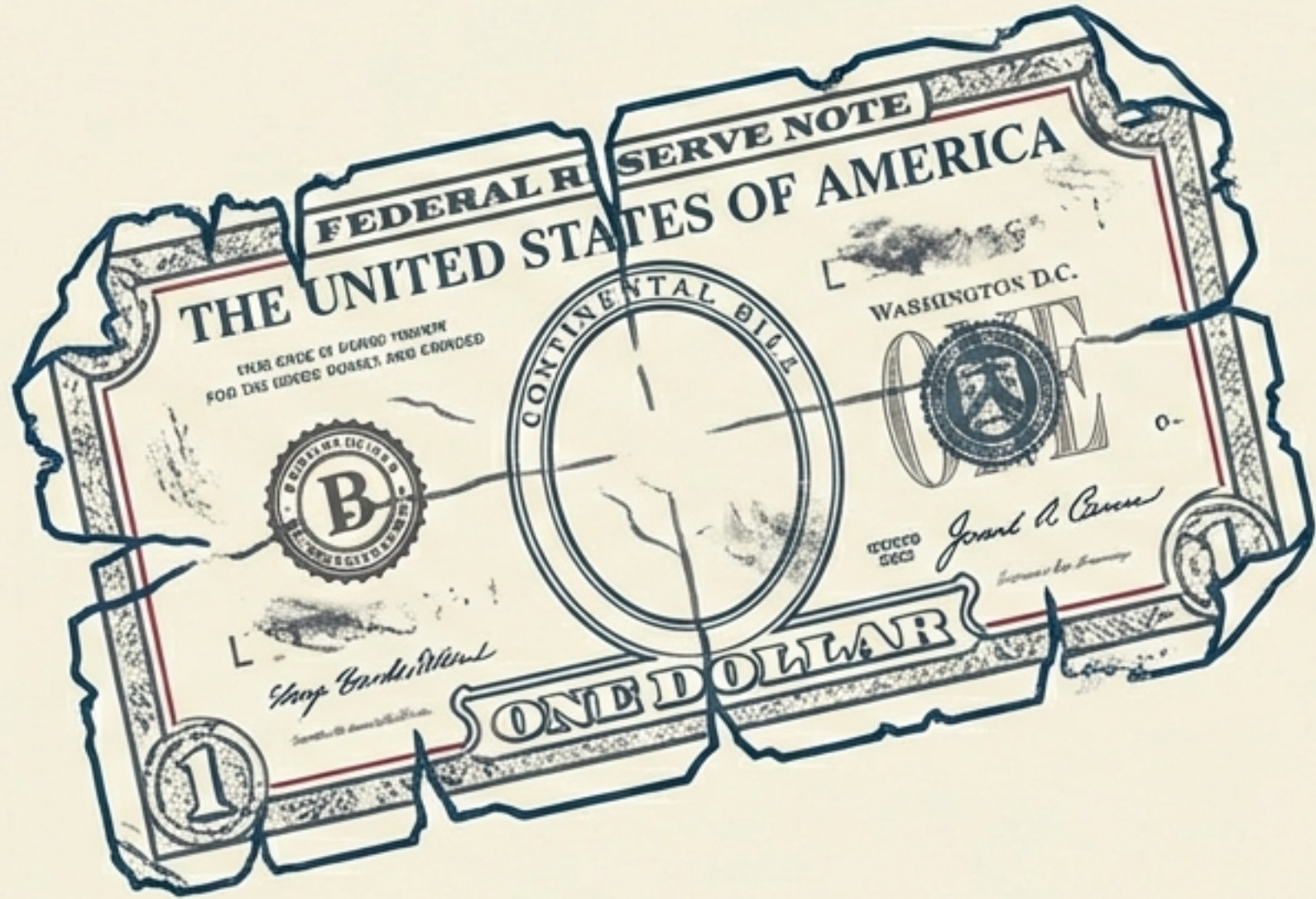
**“Our pretended union is but a name,
and our confederation, a cobweb.”**

—Noah Webster, *Sketches of American Policy*



By 1783, the United States had won its independence. But the victory did not solve the nation's problems. Instead, the fundamental weaknesses of the Articles of Confederation began to push the young country toward collapse.

A Nation Drowning in Debt Could Not Pay Its Bills.



The United States owed millions of dollars to foreign nations and its own citizens for the war effort. Without the power to tax, Congress was broke. Its requests for money from the states were often ignored.

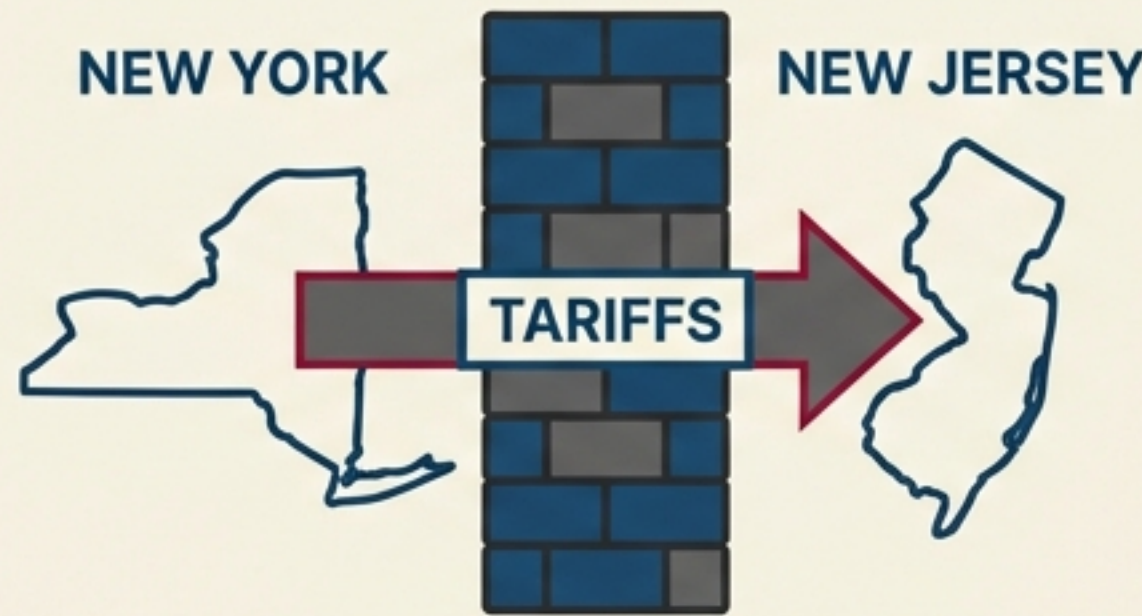
To fund the war, Congress had printed paper money—the “Continental.” With no gold or silver to back it, the currency became nearly worthless. The phrase “not worth a Continental” became common slang for anything useless.

Economic Chaos Erupted as States Acted Like Separate Countries

The financial problems were made worse by Congress's inability to regulate trade.



- **Conflicting Currencies:** States began printing their own money, creating mass confusion. A dollar from Virginia was not equal to a dollar from North Carolina, and most states refused to accept currency from others.



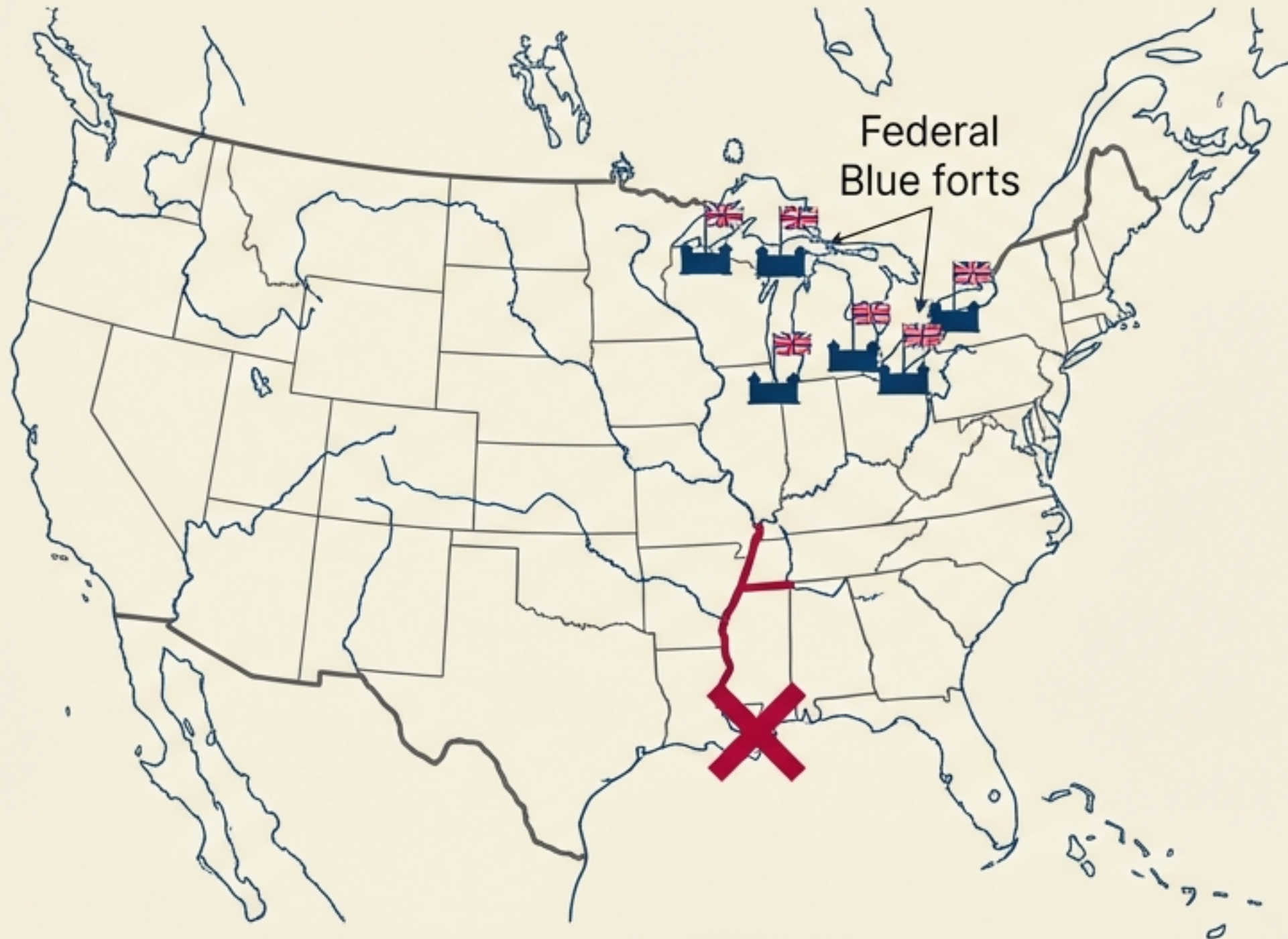
- **Interstate Tariffs:** States taxed goods from their neighbors, stifling trade and creating hostility.



- **No National Authority:** Congress was powerless to resolve these economic disputes.

Foreign Powers Openly Disrespected the Weak American Government

Seeing the disarray, powerful nations took advantage of the United States.



Great Britain:

In direct violation of the Treaty of Paris, Britain refused to withdraw its troops from forts in American territory along the Great Lakes.

Spain: To limit American expansion, Spain closed the vital port of New Orleans to all American shipping. This was a devastating blow to Western farmers who needed the Mississippi River to get their products to market.

Without a Referee, States Quarreled Amongst Themselves.

The Articles provided no system of courts to settle conflicts between states, which continued to arise.

The Vermont Dispute

Both New Hampshire and New York laid claim to the territory of Vermont. With no national court to mediate, the conflict festered, further demonstrating the central government's inability to maintain domestic peace and order.

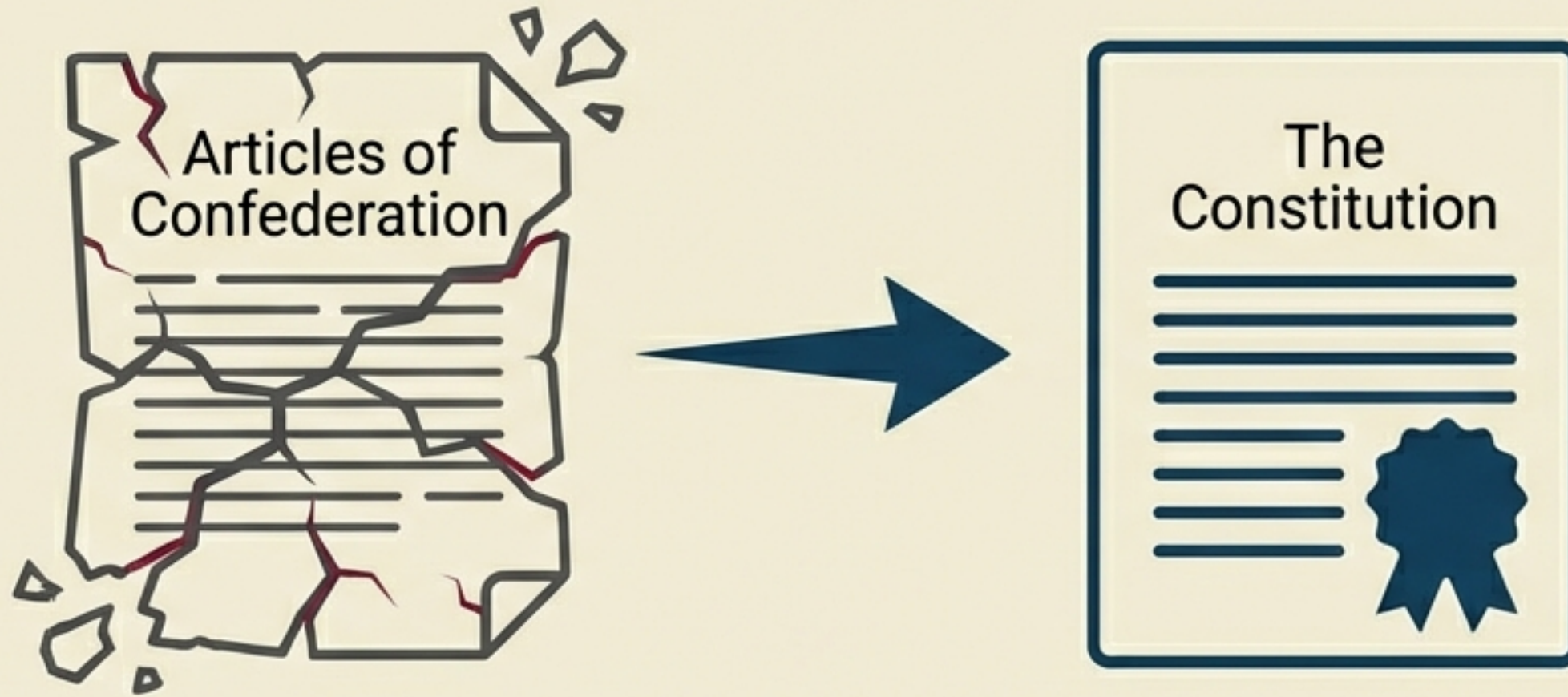


The Overcorrection Had Failed.



In an effort to prevent the tyranny of a strong central government, the Articles of Confederation created the opposite problem: a government too weak to protect its citizens, pay its debts, or defend its own borders. The very foundation of the 'united' states was cracking. It became clear that the choice was not between a strong government and a weak one, but between a functional government and no government at all.

The Failure of the First Constitution Made the Second One Possible.



The chaos and weakness under the Articles of Confederation provided a crucial, painful lesson. It convinced a new generation of leaders, including many who had once feared centralization, that a stronger national government was not a threat to liberty, but a necessity for its survival. The stage was set for a new debate and a new document: The United States Constitution.